

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Cassandra Fenkel	Team: Squad #11	CCRB Case #: 201606006	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 07/05/2016 5:00 AM	Location of Incident: § 87(2)(b); 71st Precinct stationhouse	Precinct: 71	18 Mo. SOL 1/5/2018	EO SOL 1/5/2018	
Date/Time CV Reported Tue, 07/05/2016 4:08 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 07/12/2016 11:04 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Thomas Trachta	12204	953492	071 PCT
2. SGT Mervin Bennett	00255	920019	071 PCT
3. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Danny Chan	15201	955806	071 PCT
2. SGT William Kong	04164	928589	071 PCT

Officer(s)	Allegation	Investigator Recommendation
A. An officer	Abuse: At § 87(2)(b) in Brooklyn, an officer searched § 87(2)(b)	
B. POM Thomas Trachta	Force: At the 71st Precinct stationhouse, Police Officer Thomas Trachta used physical force against § 87(2)(b)	
C. SGT Mervin Bennett	Discourtesy: At the 71st Precinct stationhouse, Sergeant Mervin Bennett spoke discourteously to § 87(2)(b)	

Case Summary

On July 5, 2016, § 87(2)(b) called the IAB Command Center and filed the following complaint on behalf of himself and his father, § 87(2)(b). The complaint was received at the CCRB on July 12, 2016.

Between July 20, 2016 and August 1, 2016, five calls were placed to § 87(2)(b) and § 87(2)(b) at their home phone number. On July 20, 2016, they both confirmed that the home phone number was the only phone number where they could be reached and they confirmed their mailing address. Neither provided an email address. During one subsequent phone call, a please call voicemail message was left and during three subsequent phone calls, either § 87(2)(b) or a combination of § 87(2)(b) and § 87(2)(b) answered, but both refused to schedule CCRB interviews and instructed that their civil attorney, § 87(2)(b), be contacted regarding this complaint. Two unreturned letters were mailed to § 87(2)(b) and § 87(2)(b) on July 27, 2016, and August 4, 2016.

Between July 20, 2016 and August 5, 2016, § 87(2)(b) was called five times. Each time, a receptionist answered and identified § 87(2)(b) as the attorney assigned to § 87(2)(b) and § 87(2)(b)'s case. During each call, § 87(2)(b) was unavailable and five please call messages were left with the receptionist. Two unreturned letters were mailed to § 87(2)(b) on July 28, 2016 and August 4, 2016. The receptionist confirmed that § 87(2)(b) could not be reached via email.

During the fifth call to § 87(2)(b) and § 87(2)(b) on August 4, 2016, they were both informed that § 87(2)(b) had been unresponsive to numerous contact attempts. However, § 87(2)(b) and § 87(2)(b) still refused to schedule CCRB interviews. They were informed that the complaint was unable to be kept open indefinitely and were provided with instruction on how to request that this complaint be re-opened in the future, should they wish to do so. Both § 87(2)(b) and § 87(2)(b) said they understood.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Squad: #11

Investigator:	_____	_____	_____
	Signature	Print	Date
Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date